EB-1A

Extraordinary Ability

The Strategic Evidence Framework

A premium guide to understanding, organizing, and mapping EB-1A evidence across business, arts, athletics, education, and science/STEM

AiVass

Published by AiVass LLC

PURPOSE. PROOF. PERMANENCE.

THE AIVASS MASTER GUIDE SERIES

EB-1A

Extraordinary Ability

The Strategic Evidence Framework

A premium guide to understanding, organizing, and mapping EB-1A evidence across **business, arts, athletics, education, and science/STEM**.

Published by AiVass LLC

PURPOSE. PROOF. PERMANENCE.

Edition 1.0 · Legal standards verified July 2026

SAMPLE SAMPLE SAMPLE

Educational material — not legal advice. Verify current requirements at uscis.gov.

PREVIEW · This is a sample of the full guide · Not for redistribution

Contents

01 **The EB-1A Opportunity** 6
A green card for people at the top of their field.

02 **The Legal Framework** 8
Three prongs, one definition, and the sources that control everything.

03 **Two Pathways, One Test** 10
How your evidence gets in the door — and how it gets judged.

04 **The Ten Criteria — Part I** 13
Awards, Memberships, Published Material, Judging, Original Contributions.

05 **The Ten Criteria — Part II** 22
Articles, Exhibitions, Leading Role, Remuneration, Commercial Success.

06 **Final Merits — Winning Step Two** 31
Where three checkmarks become one verdict.

07 **Evidence Strategy** 34
Define the field, quantify the record, respect the clock.

08 **Petition Structure** 37
Every petition tells a story. Yours should read like it was inevitable.

09 **The AI-Powered Workflow** 40
Use machines for the mapping. Keep humans on the truth.

10 **Common Mistakes & Persistent Myths** 43
The failures are predictable. That is good news.

11 **Timelines, Fees & the Visa Bulletin** 45
What it costs, how long it takes, the variable you do not control.

12 **Your Self-Assessment** 48
Score the record you have. Then build the record you need.

SAMPLE SAMPLE

Educational material — not legal advice. Verify current requirements at uscis.gov.

PREVIEW · This is a sample of the full guide · Not for redistribution

CHAPTER

01

The EB-1A Opportunity

A green card for people at the top of their field — no employer, no sponsor, no lottery.

Most employment-based paths to a U.S. green card run through someone else: an employer willing to sponsor you, a labor-market test that can take years, a job you cannot leave without starting over. **EB-1A is the exception.** It is the first-preference immigrant category for people of extraordinary ability in the sciences, arts, education, business, or athletics — and it is built around a radical idea: if you can prove you are among the very best at what you do, the United States wants you here, on your own terms.

What makes EB-1A different

- **You may petition for yourself.** The regulation allows "an alien, or any person on behalf of the alien" to file — meaning you can be your own petitioner. USCIS states it plainly: "You may apply for yourself by filing a Form I-140."
- **No job offer is required.** The USCIS Policy Manual confirms an EB-1A petition "does not need to be supported by a job offer." You must intend to keep working in your field in the U.S. — but no employer, offer letter, or sponsor is needed.
- **No PERM labor certification.** EB-1 skips the Department of Labor's labor-market test entirely, removing one to two-plus years of process and all employer dependence.
- **First in line.** EB-1 is the first employment-based preference. For most countries it is "current" — meaning no visa-number wait at all once approved (India and China are the notable exceptions; see Chapter 11).
- **Premium processing available.** For an additional fee, USCIS will act on your petition within 15 business days.

The bottom line

EB-1A trades a higher evidentiary bar for near-total independence. You do not need permission from an employer to pursue permanent residence — you need proof.

Educational material — not legal advice. Verify current requirements at uscis.gov.

SAMPLE SAMPLE SAMPLE

PREVIEW · This is a sample of the full guide · Not for redistribution

Who this category is really for

The phrase "extraordinary ability" intimidates people who would qualify and, occasionally, attracts people who would not. The legal definition is precise: a level of expertise indicating that you are **"one of that small percentage who have risen to the very top of the field of endeavor."** That is a high bar — but it is a **field-relative** bar, and the field is one you help define (Chapter 7). A Nobel Prize meets it instantly. So, routinely, do:

- Founders and executives whose methods, products, or divisions changed how an industry operates — with numbers to prove it.
- Researchers and engineers whose work is highly cited, widely adopted, or embedded in products and standards.
- Artists whose exhibitions, reviews, prizes, and sales place them among the recognized names of their discipline.
- Athletes and coaches with national-team, championship, or record-level résumés — including team honors.
- Educators whose curricula, methods, or programs were adopted far beyond their own institution.

There is **no age requirement and no minimum years of experience**. The Policy Manual says directly that a beneficiary "may be very young or early in his or her career and still be able to show sustained acclaim." What matters is acclaim — external, documented, recent.

What this guide will do for you

By the final chapter you will be able to answer, with evidence rather than hope, the only three questions that matter:

1. Which of the ten criteria can my record support today — and which can I build in the next 90–180 days?
2. Does my total story clear the "small percentage at the very top" standard, and how do I frame it so an officer sees it?
3. What exactly goes in the petition, in what order, with which exhibits — and where do professionals fit in?

> **Strategy note**
>
> EB-1A cases are rarely won by a single trophy. They are won by architecture: five to seven criteria, each modest on its own, assembled into one undeniable narrative. This guide is that architecture.

Educational material — not legal advice. Verify current requirements at uscis.gov.

PREVIEW · This is a sample of the full guide · Not for redistribution

YOU'VE SEEN THE PREVIEW

Unlock the full EB-1A Master Guide

This preview shows 5 of 52 pages. The complete guide gives you every criterion in depth, the evidence-mapping framework, the filing and fees breakdown, the expert annex, and the full self-assessment scorecard.

The full guide includes:

- Every one of the ten criteria, explained as USCIS actually applies them
- The evidence-mapping method: turn scattered achievements into proof
- A 30 / 90 / 180-day evidence sprint you can start today
- Filing, fees, and Visa Bulletin timing — with a dated snapshot
- The expert & B2B annex: intake, QC checklist, RFE risk register
- A scored self-assessment to know exactly where you stand

$99 USD · one-time · instant download

Get the full guide →

aivass.com/guides

AiVass LLC · Purpose. Proof. Permanence.

Educational material — not legal advice. Verify current requirements at uscis.gov.